

21SMCV01401 21SMCV01401

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 21SMCV01401 Hearing Date: June 25, 2026 Dept: M

CASE NAME: Bowmont Holdings LLC, et al. v. CAS Construction, et al.

CASE NO.: 21SMCV01401

MOTION: Motion

to Deem Matters Admitted

HEARING DATE: 6/24/2026

Legal

Standard

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2023.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

ANALYSIS

Defendants Bowmont Estates

Association and Bartlein & Company, Inc. moves to deem admitted all 62 Requests for Admission ("RFAs") served on Plaintiffs Bowmont Holdings, LLC, Haig Tacorian, and Gilda Tacorian ("Plaintiffs").

Defendants demonstrate that Plaintiffs failed to serve timely responses despite receiving the subject RFAs. (Geibel Decl., Exs. A-C.)

In opposition, Plaintiffs argue that they have served code compliant responses to all RFAs. (Cowles Decl., ¶¶ 5-8, Ex. A.) However, as Defendants observe in reply, Plaintiffs have only provided responses by Plaintiff Bowmont Holdings, and not any responses by the individual plaintiffs Haig and Gilda Tacorian. If the individual plaintiffs do not serve verified responses by the hearing, then the Court will deny the motion as to Plaintiff Bowmont, but grant the motion as to the individual plaintiffs. (CCP § 2033.280(c).)